

60	Diliberto vs. Surgical Care Affiliates, LLC 23-01358521	Motion for Leave to File Amended Complaint The Motion for Leave to File a Third Amended Complaint filed by Plaintiff Jay P. Diliberto, M.D., is DENIED, for lack of service. The instant Motion for Leave to Amend was filed on August 18, 2026 (ROA No. 581); however, the Motion is not accompanied by proof of service. Additionally, while California Rules of Court rule 3.1300(c) allows a proof of service to be filed “no later than five court days before the time appointed for the hearing,” Plaintiff did not comply with this rule. Given the motion has not been opposed, the Court cannot find this service defect has been waived.
61	Snell vs. Costco Wholesale Corporation 23-01354070	1. Motion to Compel 2. Motion for Summary Judgment and/or Adjudication Motion to Compel Defendant Costco Wholesale Corporation to Pay All Discovery Referee Fees Plaintiff Mark Snell’s motion to compel Defendant Costco Wholesale Corporation (“Costco”) to pay all fees and costs of the discovery referee appoint in the instant action is DENIED. On February 12, 2025, Plaintiff filed a motion seeking terminating, issue, evidentiary, and monetary sanctions against Defendant Costco. (ROA 254.) In its opposition to the sanctions motion, Costco requested the appointment of a discovery referee. (See ROA 276.) On August 1, 2025, the Court granted Costco’s request to appoint a discovery referee. (ROA 283.) Among other things, the Court found that “Plaintiff has taken an aggressive approach to discovery which undermines the intent for civil discovery to operate with minimal judicial intervention.” (Id.) As examples, the Court cited Plaintiff’s filing of the sanctions motion rather than engaging in further meet and confer efforts, Plaintiff’s refusal to sign a protective order, and the seven discovery motions Plaintiff had filed to date. (Id.) The Court further found that appointing a discovery referee would ensure that the discovery process is conducted efficiently and stated that it would issue a separate order describing the method for the process of appointing the discovery referee. (Id.) On August 6, 2025, the Court issued an order regarding the appointment of the discovery referee. (ROA 285.) The order directed that: “Counsel shall meet and confer to determine if they are able to submit a stipulation for the appointment of a specific qualified individual to act as a discovery referee. The stipulation shall meet the requirements of CCP